

25. 9:00 AM CASE NUMBER: C25-01880

CASE NAME: CTE GROUP VS. GENERAL MOTORS, LLC

*FURTHER CASE MANAGEMENT CONFERENCE

FILED BY:

TENTATIVE RULING:

This Case Management Conference (CMC) trails the Motions on calendar for Lines 16 and 17. If the tentative rulings for Lines 16 and 17 are uncontested, then the Parties are ordered to appear for a further CMC on September 14, 2026 at 8:30 a.m. in Department 16. The Parties are also further ordered to meet and confer to discuss alternative dispute resolution and shall file a case management conference statement at least five (5) court days before the CMC.

Law & Motion Add ON

26. 9:00 AM CASE NUMBER: C23-01845

CASE NAME: RAUL INIGUEZ VS. FIDENCIO GARCIA

HEARING ON SUMMARY MOTION CONT FROM 3/11/2026 PER TR

FILED BY:

TENTATIVE RULING:

This hearing was continued from March 11, 2026. Before the Court is a motion for summary judgment/summary adjudication filed by defendant Acme Builders, Inc. For the reasons set forth, the motion is **denied**.

Background

This case arises out of a collision between an Amtrak train and a motor vehicle in which Plaintiff was a passenger. Plaintiff asserts claims for motor vehicle accident and general negligence against defendants Acme Builders, Inc., Fidencio Garcia who was the driver of the vehicle, and Guillermo Alvarez, the owner of the vehicle. Other relevant facts are addressed below.

Legal Standards for Ruling on Defendants' Motion

Under Code of Civil Procedure section 437c(c), a motion for summary judgment "shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Code Civ. Proc. § 437c(c).) When a defendant moves for summary judgment, the defendant bears the burden of producing evidence that plaintiff cannot prove one or more essential elements of plaintiff's claim or that there is a complete defense to the claim. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850; Code Civ. Proc. § 437c(p)(2).) Once the defendant meets this initial burden, the burden shifts to the plaintiff to produce admissible evidence showing that a triable issue of fact exists. (*Advent, Inc. v. National Union Fire Ins. Co. of Pittsburgh, PA* (2016) 6 Cal.App.5th 443, 453; Code Civ. Proc. § 437c(p)(2).)

Motions for summary adjudication under Code of Civil Procedure section 437c(f)(1) "are 'procedurally identical' to summary judgment motions." [Citation.]" (*Duffey v. Tender Heart Home Care Agency, LLC* (2019) 31 Cal.App.5th 232, 240-241.) A motion for summary adjudication under Code of Civil

Procedure section 437c(f)(1) can only be granted "if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." (Code Civ. Proc. § 437c(f)(1).) (*See also Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 251.)

The issues to be considered on a motion for summary judgment or summary adjudication are defined by the pleadings. (*Doe v. Good Samaritan Hospital* (2018) 23 Cal.App.5th 653, 661 *Teselle v. McLoughlin* (2009) 173 Cal.App.4th 156, 161 ["The complaint measures the materiality of the facts tendered in a defendant's challenge to the plaintiff's cause of action."].) The Court may not weigh the evidence but must view it "in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party. [Citations omitted.]" (*Weiss v. People ex rel. Dept. of Transportation* (2020) 9 Cal.5th 840, 864.) Declarations and other evidence offered in support of a motion for summary judgment are strictly construed, while declarations and evidence offered in opposition to the motion are liberally construed. (*D'Amico v. Bd. of Medical Examiners* (1974) 11 Cal.3d 1, 20; *Johnson v. American Standard* (2008) 43 Cal.4th 56, 64.)

" '[S]ummary judgment cannot be granted when the facts are susceptible to more than one reasonable inference . . . ' " (*Husman v. Toyota Motor Credit Corp.* (2017) 12 Cal.App.5th 1168, 1180; *Cohen v. Five Brooks Stable* (2008) 159 Cal.App.4th 1476, 1497.) (See also Code Civ. Proc. § 437c(c) ["summary judgment shall not be granted by the court based on inferences reasonably deducible from the evidence if contradicted by other inferences or evidence that raise a triable issue as to any material fact"].) "All doubts as to the propriety of granting the motion—i.e., whether there is any triable issue of material fact—are to be resolved in favor of the party opposing the motion." (*Cohen, supra*, 159 Cal.App.4th at 1483.)

Procedurally Defective Alternative Motion for Summary Adjudication

Rule 3.1350 of the California Rules of Court provides that "If summary adjudication is sought, whether separately or as an alternative to the motion for summary judgment, the cause of action, affirmative defense, claims for damages, or issues of duty **must** be stated specifically **in the notice of motion and be repeated, verbatim, in the separate statement of undisputed material facts.** (Cal. R. Ct. 3.1350(b) [emphasis added].) Rule 3.1350(d) also states: "**The Separate Statement of Undisputed Material Facts in support of a motion must separately identify:** (A) Each cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion; and (B) Each supporting material fact claimed to be without dispute with respect to the cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion." (Cal. R. Ct. 3.1350(d)(1) [emphasis added].)

Defendant's motion, to the extent it seeks summary adjudication of specific "issues," does not comply with Rule 3.1350. The text of the notice of motion and motion seeks only "summary judgment." (Not. of Mtn. and Mtn. p. 1, ll. 22-25, p. 2, ll. 1-3.) To the extent the grounds listed in the notice of motion and motion for granting summary judgment to defendant are "issues," they are not the same issues stated in the defendant's Separate Statement ("SS") of Undisputed Material Facts ("UMFs"), "repeated, verbatim" from the motion in the SS. (Cal. R. Ct., Rule 3.1350(d)(1) [emphasis added].) Compliance with the provisions of Rule 3.1350(b) and (d) is a matter of due process.

To the extent the motion is an alternative motion for summary adjudication of issues, the motion for summary adjudication is procedurally defective and is **denied** on that ground. (*See Schmidlin v. City of*

Palo Alto (2007) 157 Cal.App.4th 728, 744 [decided under former Cal. Rules of Court, rule 342(b), now Cal. R. Court 3.1350(b)]; *Sequoia Ins. Co. v. Superior Court* (1993) 13 Cal.App.4th 1472, 1478 [notice of motion for summary adjudication must list the disputed causes of action].) The Court will only consider Defendant's motion for summary judgment.

Though the notice of motion and motion seek only summary judgment, the "issue" which comes closest to compliance with Rule 3.1350(d) is Issue 5 regarding workers' compensation barring Plaintiff's claims, which is an affirmative defense that could be summarily adjudicated under Code of Civil Procedure section 437c(f). Even if the Court considered the motion as a motion for summary adjudication of that issue, which is not the relief the notice of motion and motion seek, for the reasons explained below, Plaintiff has raised a triable issue of material fact as to that issue, precluding summary adjudication for defendant on the merits of that defense in any event.

Other Procedural Issues

A. Opposing Party Evidentiary Objections in the Response to the SS

Plaintiff makes evidentiary objections in the Response to the SS as to Issue 1 UMF No. 4 and Issue 2 UMF No. 4. To the extent the objections stated in the Response to those UMFs are directed to the underlying evidence, the evidentiary objections are not filed in a separate document, are not directed to specifically identified items of evidence or exhibits and are not accompanied by a proposed order. (Cal. R. Ct., Rule 3.1354(b) and (c).) The Court does not consider the evidentiary objections in the Response to the SS.

B. Plaintiff's Objection to Reply Separate Statement

Code of Civil Procedure section 437c as amended effective January 1, 2025 states in relevant part, "The reply shall not include any new evidentiary matter, additional material facts, or separate statement submitted with the reply and not presented in the moving papers or opposing papers." (Code Civ. Proc. § 437c(b)(4) [emphasis added].) Even if Defendant's reply separate statement does not include additional material facts or new evidentiary matter, it includes extensive argument that, if considered, would violate the letter and spirit of the reply page limitations on a summary judgment motion. Further, Code of Civil Procedure section 437c, read as a whole, together with California Rule of Court, Rule 3.1350 do not indicate that argument, rather than facts and evidence, is properly included in a separate statement.

Further, much of the "reply" consists of evidentiary objections either to the contrary facts presented by Plaintiff in response to Defendant's UMFs or to the PAFs, which is also improper both because the factual statements in a separate statement are facts, not evidence, and because the applicable rules prescribe the proper method of presenting objections to evidence submitted in support of or opposition to a summary judgment motion, as explained above. (Cal. R. Ct., Rule 3.1354.) The Court therefore does not consider the reply separate statement.

Plaintiff supported the objection to the reply separate statement with a request for judicial notice of (a) the changes in the text of Code of Civil Procedure section 437c, in particular the addition of text in section 437c(b)(4) quoted in part above (Pl. RJN Exh. A); (b) the results of a Westlaw search for cases construing the new provision (Pl. RJN Exh. B); and (c) a series of unpublished, nonprecedential trial court orders from different trial courts in this state (Pl. RJN Exhs. C-F). The Court **only grants** the

request as to the statutory changes in Code of Civil Procedure section 437c. (Evid. Code § 451(a).)

Analysis

Acme's SS includes 28 UMFs. Plaintiff has filed a response to Acme's SS (titled "Plaintiff's Separate Statement") in which Plaintiff lists 18 UMFs as undisputed, and 10 as disputed. Plaintiff's SS also includes Plaintiff's additional material facts ("PAFs") numbered 29 through 72 which Plaintiff contends also raise triable issues precluding summary judgment. The Court considers the undisputed and disputed facts and PAFs in the context of the legal framework of respondeat superior, the going and coming rule, and its exceptions.

A. Respondeat Superior and the Going and Coming Rule

An employer can be held vicariously liable for torts committed by an employee within the course and scope of his employment under the doctrine of respondeat superior. (*Perez v. Van Groningen & Sons* (1986) 41 Cal.3d 962, 967.) Acme cites *Marez v. Lyft, Inc.* (2020) 48 Cal. App. 5th 569, which in turn describes two lines of decisions with tests for determining whether an employee was acting in the course and scope of his employment such that the employer should be held liable for a tort committed by the employee. (*Id.* at 577.)

The Court in *Marez* explained that one test set forth in *Moreno v. Visser Ranch, Inc.* (2018) 30 Cal.App.5th 568 makes the employer liable " ' if the activities that caused the employee to become an instrument of danger to others were undertaken with the employer's permission and were of some benefit to the employer, or in the absence of proof of benefit, the activities constituted a customary incident of employment.' [Citation omitted.]" (*Id.*) Another from the decision in *Halliburton Energy Services, Inc. v. Dept. of Trans.* (2013) 220 Cal.App.4th 87, "provides 'an employee's conduct is within the scope of his or her employment if (1) the act performed was either required or incident to his duties or (2) the employee's misconduct could be reasonably foreseen by the employer in any event. [Citation omitted.]" (*Id.*) In the *Halliburton* test, " 'foreseeability means that in the context of the particular enterprise, an employee's conduct is not so unusual or startling that it would seem unfair to include the loss resulting from it among the costs of the employer's business.' [Citation omitted.]" (*Id.*) Generally, whether an employee is acting within the course and scope of his employment is a question of fact. (*Perez, supra*, 41 Cal.3d at 968.)

In employee motor vehicle accident cases, under the umbrella of the respondeat superior doctrine, courts have developed the "going and coming" rule that the employee's ordinary commute to and from work "is ordinarily considered outside the scope of employment," such that the employer is generally not liable for an employee's torts committed during the commute. (*Moreno, supra*, 30 Cal.App.5th at 577; *Lobo v. Tamco* (2010) 182 Cal.App.4th 297, 301 ["[E]mployers are generally exempt from liability for tortious acts committed by employees while on their way to and from work because employees are said to be outside of the course and scope of employment during their daily commute. [Citation omitted.]"].) The going and coming rule thus generally creates a defense for the employer to a claim by a third party for vicarious liability for an employee's accident during the employee's commute. (*Lobo, supra*, 182 Cal.App.4th at 300-301 [employer moved for summary judgment on ground the vehicle accident happened on employee's commute home when he was leaving work, and Court of Appeal assumed employer met its initial burden on the motion].)

"The rationale for the rule is that the employment relationship is suspended from the time the

employee leaves work until he or she returns because an employee ordinarily renders no service to the employer while traveling. [Citation omitted.]" (*Pierson v. Helmerich & Payne Internat. Drilling Co.* (2016) 4 Cal.App.5th 608, 618 [emphasis added].) (See also *Blackman v. Great American First Savings Bank* (1991) 233 Cal.App.3d 598, 602 [same].) The rule applies particularly when the employee regularly performs work at a specific work location, and the job does not involve driving. (*Huntsinger v. Glass Containers Corp.* (1972) 22 Cal.App.3d 803, 809.)

Notably, in another case cited by Acme, *Henderson v. Adia Services* (1986) 182 Cal.App.3d 1069, the Court points out that although workers' compensation cases are often cited in cases involving the going and coming rule and its exceptions, that practice, namely, reliance on workers' compensation cases in going and coming rule cases outside the workers' compensation context, has been questioned by the California Supreme Court as perhaps not legally sound: "As Mr. Witkin points out, however, 'This practice has been questioned, for compensation rules were developed from a distinct social philosophy, with fault eliminated as a test, and liberal construction of the act required.' [Citations omitted.]" (*Henderson, supra*, 182 Cal.App.3d at 1078 [quoting *Ducey v. Argo Sales Co.* (1979) 25 Cal.3d 707, 722].)

The Court in *Pierson, supra*, addressed the different policy considerations in workers' compensation cases and tort cases addressing an employer's respondeat superior liability. "Workers' compensation cases take a more expansive view of the test for the course of employment than tort cases because the policies underlying the workers' compensation statute favor granting employee's coverage. These policies have caused the California Supreme Court to state in a workers' compensation case that 'any reasonable doubt as to the applicability of the going and coming doctrine must be resolved in the employee's favor.' [Citation omitted.] In contrast, the vicarious liability imposed on employers by the respondeat superior doctrine is based on tort policies addressing the allocation of risk and shifting the cost of torts to the community at large. [Citation omitted.]" (*Pierson, supra*, 4 Cal.App.5th at 620 [citing *Hinjoso v. Workmen's Comp. Appeals Bd.* (1972) 8 Cal.3d 150, 155-156 for the expansive view, a case relied on by Acme as discussed below].) (See also *Perez, supra*, 41 Cal.3d at 967 fn. 2.)

B. Exceptions to the "Going and Coming" Rule

The "going and coming" rule is subject to a number of exceptions addressed in the cases cited by the parties, including the "required vehicle" exception, the "incidental benefit exception," and the "special errand" exception which are the focus of the parties' briefing here.

1. Required Vehicle Exception

The "required vehicle" exception generally applies when the employee is required to bring a vehicle to work every day, or at least on the day of the accident, for use on the job. (See *Huntsinger, supra*, 22 Cal. App. 3d at 806, 810 [reversing trial court order granting nonsuit in favor of employer, where employee was required to use his vehicle to perform his job duties, such as making customer calls in the field, and was reimbursed by the company for use of his vehicle].) Courts have rejected the position that an exception to the going and coming rule applies based on the fact employees travel from remote locations to the job site and that the employees organize carpools to commute to and from the work location, even if the employer is aware of the carpool arrangements. (See *Pierson, supra*, 4 Cal.App.5th 608, 633 [carpooling to oil rig site, but facts did not show company ordered or requested employee to carpool with the other employees].)

2. Incidental Benefit Exception

The "incidental benefit" exception applies when the employer obtains an incidental benefit from the employee's vehicle, if the employee makes the vehicle available as an accommodation to the employer or the employer has come to rely on its availability on a regular basis. (*Pierson, supra*, 4 Cal.App.5th at 629 [citing CACI NO. 3725].) "[E]xceptions will be made to the "going and coming" rule where the trip involves an incidental benefit to the employer, not common to commute trips by ordinary members of the work force. The cases also indicate that the fact that the employee receives personal benefits is not determinative when there is also a benefit to the employer. [Citations omitted.]" (*Hinman v. Westinghouse Electric Co.* (1970) 2 Cal.3d 956, 962.) (*See also Halliburton, supra*, 220 Cal.App.4th at 96-97 [in which the Court explained, "When the employer incidentally benefits from the employee's commute, that commute may become part of the employee's workday for the purposes of respondeat superior liability," but did not need to decide if the incidental benefit exception applied to the employee's use of the company truck to commute because the accident occurred while the employee was on purely personal business over 100 miles from the work site]; *Lobo, supra*, 182 Cal.App.4th at 301 [stating the "key inquiry" in the "required vehicle" exception is whether there is an "incidental benefit" for the employer, describing the test as whether "the use of a personally owned vehicle is either an express or implied condition of employment" or the employee has "agreed, expressly or impliedly," to make the vehicle available as an accommodation to the employer" and the employer has come to rely on its availability].)

However, in *Ducey v. Argo Sales Co.* (1979) 25 Cal.3d 707, cited by Acme, the Court upheld a jury verdict that an employer was not liable for an employee's motor vehicle accident which occurred during the employee's trip home from work based on the "going and coming" rule. The Court held none of the exceptions applied, even though the employee occasionally ran errands for the employer using her car and transported certain work equipment voluntarily, in part because transporting the equipment was for the employee's personal benefit and storage was available for the equipment at the employer's garages. (*Id.* at 723.)

3. Special Errand Exception

The Court in *Pierson, supra*, explained the factual elements of the special errand exception: "Under the special errand exception, an employee is considered within the scope of employment while coming from home or returning to it, while on a special errand either as part of his regular duties or at a specific order or request of the employer. [Citations omitted.] An example of a special errand is the delivery of mail to a post office on the way home from work. [Citation omitted.]" (*Pierson, supra*, 4 Cal.App.5th at 632.)

C. Defendant's Material Facts as to Which Plaintiff Concedes There Is No Dispute

It is undisputed that on the morning of the accident, defendant Garcia drove his tenant's/friend's (defendant Alvarez's) Ford Expedition vehicle to pick up Plaintiff from Plaintiff's house. (UMF 1.) Garcia had never picked up Plaintiff in Alvarez's Ford before. (UMF 26.) Alvarez has never worked for Acme. (UMF 5.)

Plaintiff began working seasonally for Acme in 2017. (UMF 6.) Plaintiff worked for Acme from February to April 2021, not in May or June 2021, and began working for Acme again in July 2021 until August 9, 2021, the date of the accident. (UMF 8, 9.) In 2021, when he was working for Acme, he

worked three to four days a week. (UMF 12.) Prior to the accident, Acme had been evicted from the warehouse and office space located in Oakland. (UMF 16.) After the eviction, one container with Acme tools and materials was moved to Garcia's property. (UMF 18.) Garcia's truck typically carried Garcia's tools in toolboxes in the rear of the truck and on the sides, and Garcia carried the tools even when he did not intend on using them. (UMF 25.)

On the day of the accident, Garcia and Plaintiff were scheduled to work on the roof at the home of Paul Peczon, the owner of Acme. (UMF 10.) They had been working on the roof for several days prior to the date of the accident. (UMF 15.) The accident happened a few blocks from Garcia's home after Garcia picked up Plaintiff when they were driving back to Garcia's residence. (UMF 7.)

Paul Peczon, Acme's CEO, currently works by himself and does not have a truck to haul materials, as he has everything delivered. (UMF 21.) At the time of the accident, Acme had workers compensation insurance, and Paul Peczon cooperated with his insurance agents regarding workers compensation claims for Plaintiff. (UMF 23, 24.)

D. Defendant's Material Facts Which Plaintiff Contends Are Disputed

UMF Nos. 2, 3, 4, 11, 13, 14, 17, 19, 20, and 22 are listed by Plaintiff as disputed. The Court finds that Plaintiff has not genuinely disputed the facts stated in UMF Nos. 4, 14, and 17. Plaintiff's response to those UMFs and the supporting evidence Plaintiff cites include new or additional facts but do not directly dispute the fact as specifically stated in the UMF. Plaintiff, however, has raised genuine factual disputes as to the other UMFs listed as disputed.

For example, Acme asserts that in 2021, Garcia drove Plaintiff to work "as a favor," that he was not required to drive him, and that Plaintiff's brother Javier Martinez sometimes drove Plaintiff to work. (UMF 2, 3.) In response, Plaintiff has presented evidence disputing those facts which shows that Plaintiff did not drive himself to work for Acme, does not have a car, and does not have a driver's license, that on any day when he worked in 2021 he was driven to work by Garcia, and that his brother Martinez no longer worked for Acme in 2021. (Resp. to UMF 2, 3.) The evidence supports the inference that Garcia may have had to take Plaintiff to work if Garcia needed Plaintiff's help with the job because in 2021 Plaintiff could not get to the job site without Garcia driving him.

Plaintiff has also genuinely disputed UMF 11 that Garcia could have done the roofing job on Acme's owner's house, the job they were scheduled to do on the date of the accident, without Plaintiff's help. (Resp. to UMF 11.) Plaintiff has genuinely contested that even if Plaintiff was not a "carpenter," Garcia testified that he needed Plaintiff's help on the roofing job. (Resp. to UMF 11.) The fact that Plaintiff was an "assistant" rather than a "carpenter" is also genuinely contested by Acme's filing with the Employment Development Department in which it listed Plaintiff's job as "carpenter." (Resp. to UMF 11.)

Plaintiff has raised a genuine dispute regarding UMF 13, which states that the owner of Acme "never" required workers to pick up tools or materials for a project on the way to work. The Peczon testimony at deposition indicates that Garcia indeed "sometimes" stopped to pick up materials for a job on his way to work, which clearly disputes that this "never" occurred. (Resp. to UMF 13, citing in part Peczon DT p. 20, ll. 1-3 and 14-18.) While Peczon disputes this occurred "regularly," he testified this might occur twice a month and that he instructed Garcia to clock in if he picked up materials on his way to work. (UMF No. 13, citing in part Peczon DT p. 20, ll. 1-13.) The inference that Garcia may have had to

use his truck to pick up materials is also supported by an inference from Peczon's deposition testimony confirming that Garcia was given a company credit card which he could use to pay for gas for his vehicle. (Resp. to UMF 13, citing Peczon DT p. 43, l. 25 – p. 44, l. 25.)

For similar reasons, the Court finds Plaintiff has raised a genuine dispute as to UMF 20 and 22. Acme's position is that Garcia was not required to use his truck or pick up materials and only volunteered to use it to pick up materials on his way to work. There are reasonable, conflicting inferences that can be drawn from the evidence cited by Plaintiff that when needed materials were not on site, Garcia had to pick up those materials using his own vehicle for which Acme provided compensation, both by allowing Garcia use of a credit card to pay for gas for his vehicle and Peczon wanting Garcia to clock in so that his time would be compensated if he picked up materials on his way to work. (Resp. to UMF 20, 22.)

Plaintiff has also genuinely disputed UMF 19 by raising a factual dispute as to whether the tools needed to do the roofing work on Acme's CEO's house on the date of the accident were stored and located at Garcia's house and had to be picked up for Garcia and Plaintiff to do the job that day. (Resp. to UMF 19, citing Garcia DT pp. 163, l. 3 – 165, l. 25.) The fact that Acme stored the company tools at Garcia's house alone supports an inference that Acme had come to rely on Garcia's use of his vehicle for the benefit of the company to transport tools and materials stored there to the job site, that Garcia was not merely voluntarily transporting tools in his vehicle, that he was being paid at a minimum for gas for his vehicle based on the benefit of the use of his vehicle for Acme, and that an exception to the going and coming rule may apply.

If a party opposing a motion for summary judgment or summary adjudication raises a genuine factual dispute regarding any of the undisputed facts offered by the moving party material to the disposition of the cause of action or issue, that party has raised a triable issue as to that fact, and the Court may deny the motion. (*Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 252; *Insalaco v. Hope Lutheran Church of West Contra Costa County* (2020) 49 Cal.App.5th 506, 521 [inclusion of specific undisputed facts in the moving party's separate statement concedes the facts are material, and the moving party cannot then deem those same facts immaterial when they are disputed by the opposing party].)

E. Plaintiff's Additional Material Facts

The Court finds Plaintiff's genuine disputes of the material facts cited above raise triable issues. That Plaintiff has raised a triable issue of fact precluding summary judgment is bolstered by the PAFs and supporting evidence.

Plaintiff has presented evidence that as of August 2021 when the accident occurred, Acme's offices were located at the home of Paul Peczon, Acme's sole owner, the location where the roofing work was to be performed on the date of the accident. (PAF 32, 72; *see also* Pl. Exh. 1A [Peczon DT 11:14-16], Def. Exh. 2 [Peczon Decl. ¶ 1].) Garcia used his personal vehicles to pick up materials and supplies to take to the job sites, to travel between job sites, to supervise work, to make pickups at hardware and supply stores, and to drop off time sheets and work logs at the Acme office, and he needed to have a personal vehicle at work to do so. (PAF 36, 65-69.) Acme knew about Garcia using his personal vehicle and relied on Garcia making the vehicle available during the workday. (PAF 45.)

Plaintiff and Garcia were the only construction worker employees working outside the office for Acme

in July and August 2021, and Garcia was the only supervisor. (PAF 39, 43, 47, 51, 64; *see also* Pl. Exh. 1A [Peczon DT 16:19-25].) In summer 2021, Garcia informed Paul Peczon that there were jobs where Garcia needed a helper and that he wanted Plaintiff to be his helper, though they knew Plaintiff did not drive, did not have a car, and would need to be transported to and from the job sites. (PAF 47-49.) Garcia would pick Plaintiff up from Plaintiff's house and take them to the job site, but one or two days a week, after Garcia picked Plaintiff up, they would go back to Garcia's house to pick up tools or heavy materials and then go to the job site. (PAF 54, 55, 57.) Garcia's house where the tools were stored was considered the "shop" after Acme was evicted from its storage facility. (PAF 33, 46, 53.) Acme gave Garcia a company credit card to buy and transport materials and tools, and to put gas in his vehicles for years. (PAF 44.)

The roofing job Plaintiff were scheduled to do on the day of accident began in late July and early August 2021 and was at Paul Peczon's house, which is also the location of Acme's office. (PAF 58-61, 72.) On the day of the accident, Garcia picked Plaintiff up and they were on their way back to the "shop" to pick up materials and load them into Garcia's truck when the accident occurred. (PAF 57-61.)

F. Application of the Legal Framework to the Undisputed and Disputed Facts

Defendants argue that the issues on the motion are bilateral – either the accident did not occur in the course and scope of employment of both Plaintiff and Garcia and Acme is not liable, or if the accident did occur in the course and scope of employment of both Plaintiff and Garcia, then the workers' compensation exclusivity rule applies, and Plaintiff's only remedy is to pursue relief through workers' compensation insurance. Acme's reply similarly asserts that the Court has to accept as true either that when the accident occurred, Plaintiff and Garcia were on their own time because they were driving back to Garcia's house to switch vehicles and drive to work, or that they were both in the scope of their employment because they were driving back to Garcia's house to switch vehicles and load tools and then commute to work such that Plaintiff's injury in the accident was linked "in some causal fashion" to his employment with Acme and his remedy is worker's compensation. (Reply, p. 1, ll.10-21.)

There is another alternative. The other alternative is that Plaintiff was not acting within the course and scope of his employment, as he was merely a passenger getting a ride to work from Garcia, but that Garcia was acting within the course and scope of his employment as supervisor picking up and taking his helper, who he needed to assist on the roofing job and had no other means of transportation, to get his helper, as well as the tools from Garcia's house, to the work site. getting to the job site, while making a stop to pick up Acme's tools from Garcia's house needed for the roofing job that day and then proceeding to the job site, such that an exception to the "going and coming" rule applies which brings Garcia's trip with Plaintiff within the scope of employer liability under the respondeat superior doctrine.

1. Genuine Disputes Raised as to Defendant's UMFs in Support of the Motion

In Section B.i. of Acme's supporting memorandum, Acme argues that Garcia did not undertake to pick up Plaintiff with Acme's permission and that Garcia's activity did not constitute a customary incident of his employment with Acme. The key material facts Acme cites in support of this argument, in particular UMFs 2, 3, and 11, are disputed by contrary evidence offered in the opposition as well as by

a number of PAFs as summarized above. (See also PAF 47-49.) Further, in 2021, Garcia was Plaintiff's sole means of transportation to the work sites where he was assisting Garcia, every day that Plaintiff worked for Acme in 2021 as Garcia's assistant, Garcia picked Plaintiff up and transported him to work, Plaintiff was the only other construction worker at Acme with Garcia in 2021 when the accident happened, and Garcia needed Plaintiff's assistance with the work for Acme, including the roofing job scheduled that day. (Resp. to UMF 2, 3, 11; PAF 47-49.) (See also Pl. Exh. 1C [Garcia DT 24:20-24] Plaintiff has also raised factual disputes as to whether after picking up Plaintiff had to pick up tools stored at his house that were necessary for the roofing work to be performed on Peczon's house that day. (Resp. to UMF 13, 19, 20, 22.) (See also PAFs 33, 46, 53-55, 57-61.) (See also Pl. Exh. 1C [Garcia DT 163:3-165-25, 167:16-25].)

These disputed facts also raise triable issues as to whether Garcia using a personal vehicle to pick up Plaintiff and transport him to work, as well as to pick up tools and materials stored at Garcia's property on his way to the job site and to pick up materials and tools elsewhere, was required for Garcia's job as supervisor, or was at least a substantial incidental benefit to Acme on which Acme relied. (*Compare* Acme Argument B.ii. to Resp. to UMF 2, 3, 11, 13, 19, 20, 22.) (See also PAFs 36, 65-69; see also Pl. Exh. 1A [Peczon DT 18:11-13 (Garcia's job as supervisor was to supervise multiple job sites), DT 20:1-21:11 (picking up materials in his truck happened twice a month and was part of Garcia's job, *but see* Pl. Exh. 1C [Garcia DT 96:1—16 [Garcia picked up materials in his truck two to three times a week paid for on the company credit card and put gas in his truck with the company credit card one to two times a month, of the four times per month he filled up), DT 22:3-10 (travel to multiple job sites), DT 159:19-161:2 [Garcia sometimes used his heavy duty truck to pick up gravel, and sometimes before work]; Pl. Exh. 1B [Iniguez DT 74:19-23 [between 2017 and 2021 Garcia and Iniguez many times stopped at locations other than the warehouse and Garcia's house to pick up tools and materials, such as Home Depot]]).) Plaintiff's evidence raises a triable issue of fact that on the day of the accident, Garcia needed to pick up and transport Plaintiff to the job site, stopping at Garcia's house for tools stored on his property for Acme, in order for Garcia to be able to do the roofing work. (PAF 47-49; see also Pl. Exh. 1A [Peczon DT 65:14-23, 67:23-68:21, 69:3-9 [Garcia contacted Iniguez to come back to work because Garcia needed him]; PAF 54, 55, 57 [see also Pl. Exh. 1B [Iniguez DT 64:14-65:11]]; PAF 33, 46, 53; see also Pl. Exh. 1B [Iniguez DT 28:11-23 (shop at Garcia's where they stored materials and "tools that were the boss's")].)

Though Acme argues they were not driving to the job site when the accident happened, the evidence supports an inference they were going to Garcia's house to pick up his truck and work tools stored at Garcia's residence that they needed to perform the roofing job at the Peczon property. (PAF 57-61, 72 and evidence cited above.) There are reasonable, conflicting inferences to be drawn from the evidence regarding whether Garcia was merely on a "pre-work errand/favor" to Plaintiff or whether he was engaged in a necessary work errand by transporting Plaintiff and picking up tools to perform the roofing work when the accident occurred. The reasonable, conflicting inferences preclude the Court from granting summary judgment; the issue must be decided by the trier of fact. (Code Civ. Proc. § 437c(c); *Husman, supra*, 12 Cal.App.5th at 1180; *Cohen, supra*, 159 Cal.App.4th at 1497.)

The Court also finds the disputed material facts distinguishable from *Ducey* cited by Acme. Unlike in *Ducey*, there is at least a reasonable inference that Acme's roofing work tools were being stored at Garcia's residence not as a mere convenience but because there was no other storage location

available after Acme's was evicted from its prior storage facility. There is also a reasonable inference the work tools needed for the roofing work Garcia and Plaintiff were going to perform that day were necessary for the job; as a practical matter, both Plaintiff and the tools had to be picked up and transported to the job site to perform the work that was to be done that day, and picking up Plaintiff and stopping at Garcia's residence was the first part of the trip to the work site.

2. Cases Relied on by Acme Are Distinguishable

The Court finds distinguishable *Smith v. Workmen's Compensation Appeals Board* (1968) 69 Cal.2d 814 and *Pierson, supra*, relied on by Acme. *Smith*, a workers' compensation decision, held that the going and coming rule did not bar the decedent employee's spouse from recovering workers' compensation death benefits, where the employee was a social worker who was required by the employer to furnish his own vehicle to perform his job functions. The employee was injured on his way home from work. Neither party contends Plaintiff Iniguez was required to have a vehicle to perform his job here.

The analysis is different for Garcia. There are at least triable issues raised by Plaintiff as to whether Garcia was acting in the scope of his employment with Acme when the accident occurred. The disputed facts which raise triable issues are that (a) Garcia, as a supervisor, needed an assistant to perform his work including specifically the roofing job the day of the accident, (b) during the applicable time frame Plaintiff was the only Acme worker/employee, (c) Garcia had to provide Plaintiff transportation to the job site so that Plaintiff could assist him on the roofing job, as Plaintiff did not drive, had no car, and Plaintiff's brother no longer worked for Acme or provided Plaintiff work transportation in 2021, (d) Garcia was storing Acme's equipment needed for the roofing job at Garcia's home since Acme lost its storage unit, (e) the equipment at Garcia's house was needed for the roofing job and had to be transported by Garcia to the job site that day by using Garcia's vehicle, (f) Garcia was given a company credit card to use for material and tool purchases and to pay for gas for Garcia's vehicle, and (g) as admitted by Acme's owner, Garcia twice a month had to use his truck to pick up materials for jobs for Acme (or more frequently based on other deposition testimony. (Resp. to UMF 2, 3, 11, 13, 19, 20, 22 and PAF 32, 33, 36, 39, 43, 44, 47-49, 51, 53-55, 57-61, 64-69.) These facts raise triable issues as to whether Garcia was within the scope of his employment when the accident occurred under the "required vehicle," "incidental benefit" or "special errand" exceptions.

Pierson, supra, relied on by Acme is also distinguishable. The case involved oil rig workers who, among themselves, made carpooling or ridesharing arrangements to reach the rig sites. The Court noted that two other published decisions had affirmed summary judgment for the employer in cases addressing the relationship between carpooling and scope of employment. (*Pierson, supra*, 4 Cal.App.5th at 623.) In this case, it is not clear to the Court, or at least there may be a triable issue, as to whether Plaintiff and Garcia were "carpooling," as opposed to Garcia, as part of his job duties as supervisor, transporting an essential worker, along with necessary work tools, to the job site though they did not reach the location to pick up the tools before the accident occurred. For carpooling and scope of employment, *Pierson* identifies five factors to consider, including "(1) the role played by the employer in any carpooling arrangements; (2) payments by the employer to its employees for the time or expenses incurred in commuting to the jobsite; (3) employer control over the commute; (4) the location of the accident compared to the route the driver would have taken if not transporting other

employees; and (5) any incidental benefits accruing to the employer as a result of the employees' carpooling arrangements. For example, the first factor is addressed by evidence showing whether the employer requires employee carpooling, merely encourages it, or takes a neutral approach. [Citations omitted.]" (*Id.* at 624.) There are triable issues regarding the factors identified in *Pierson*, even if this case is considered one involving carpooling, as there are disputed inferences that may be drawn from the facts, including Garcia's supervisor status and Plaintiff's status as the only remaining Acme worker to assist Garcia, Garcia's use of a company credit card to pay for gas or other items, Garcia's storage and transportation of Acme's tools to the job site and the incidental benefit derived by Acme from Garcia's use of his vehicle for those purposes.

In *Henderson, supra*, 182 Cal.App.3d 1069, cited by Acme, the plaintiff was involved in a motor vehicle accident caused by a person employed by a temporary staffing agency when the employee was on route to his temporary job site. The Court affirmed a summary judgment for the employer staffing agency, finding that the trip by the temporary employee to his temporary worksite did not provide an "incidental benefit" to the employer outside the ordinary commute of ordinary members of the workforce. (*Id.* at 1076.) The temporary employee in that case was merely commuting from his home to his temporary work location, and the Court noted that the employer did not pay the employee for travel expenses or compensate him for travel time. (*Id.*) Plaintiff is in a similar position to the temporary employee in *Henderson*, but Garcia is not. Indeed, the *Henderson* decision states that "[a]ctivities which have been considered special errands include 'picking up or returning tools used on the job. . . . [Citation omitted.]'" (*Henderson, supra*, 182 Cal.App.3d at 1077.) Garcia picking up Plaintiff was akin to Garcia picking up another item of equipment or tool needed to perform the job that day.

In its reply, Acme relies primarily on a workers' compensation case, *Hinjoso v. Workmen's Comp. App. Bd.* (1972) 8 Cal.3d 150, which it argues is on point. That case, however, is factually distinguishable in legally significant ways. In particular, the facts as summarized by the Court indicated that the plaintiff worked a nine to nine and a half hour workdays as a farm laborer whose work required him to work on noncontiguous fields. (*Id.* at 152.) Workers were "required to provide their own private vehicles between the fields." (*Id.* at 152 and fn. 1.) He was compensated for the time in which he was transported from one field to the next during the course of the workday (*id.* at 152), and he needed vehicle transportation during the workday as a condition of the job "for the variable inter-ranch transit necessary to perform the day's work." (*Id.* at 152.) To meet his obligation to provide vehicle transportation for himself between fields, he made an agreement with his coworker to transport him both to and from work, and between the farms during the day, and he paid his coworker to share the operating costs of the coworker's vehicle. (*Id.* at 153.) The accident in that case occurred while the plaintiff's coworker was transporting him home from work as a passenger in his coworker's vehicle. (*Id.*)

The Court in *Hinjoso* emphasized that, in the worker's compensation context, "the courts have held non-compensable the injury that occurs enroute to a fixed place of business at fixed hours in the absence of special or extraordinary circumstances." The general rule thus "exclude[s] the ordinary, local commute that marks the daily transit of the mass of workers to and from their jobs" as compensable as subject to the going and coming rule but excepts from that rule "extraordinary transits that vary from the norm because the employer requires a special, different transit, means of transit, or use of a car, for some particular reason of his own." (*Id.* at 157.) The Court stated, "Two co-

employees, injured in the same accident and under identical employment circumstances, cannot logically be treated differently under the workmen's compensation law merely because one is the legal owner of, and the other a passenger in, the vehicle involved in the accident. [Citations omitted.]" (*Id.* at 162 [emphasis added].) Notably, the Court in *Hinjoso* recognized that in the context of industrial accidents, where there are many varying circumstances, each case must be considered " 'by the facts which are peculiarly its own.' " (*Id.* at 155.)

In this case, Plaintiff and Garcia, though driving in the same vehicle and involved in the same accident, were not "under identical employment circumstances." (*Id.* at 162.) There are at least triable issues of material fact that Garcia, as supervisor, had different job duties and requirements which included Garcia picking up and transporting his assistant (Plaintiff), picking up and transporting tools, and picking up materials for Acme. Unlike the passenger in *Hinjoso*, there is no evidence offered or contention by Acme that Plaintiff was required to have a vehicle as a condition for his job, or that Plaintiff was paying Garcia to provide his transportation to work. To the contrary, there is evidence that some of the costs of Garcia's vehicle were being paid by Acme, including gas.

The undisputed fact that Garcia was driving his tenant's vehicle when he picked up Garcia, because his truck was blocked by that vehicle when he went to pick up Garcia, is arguably a unique fact not found in the decisions cited by the parties. The significant issues as the Court perceives it under the case law are the purpose of the trip, whether picking up Plaintiff was a special errand or otherwise necessary for Garcia and Plaintiff to do the job assignment that day, whether Garcia generally was required to have a vehicle for his job responsibilities for Acme, expressly or impliedly, with those job responsibilities including giving a ride to Plaintiff to work each day Plaintiff worked, and whether Acme received a substantial incidental benefit from Garcia using his personal vehicle for work purposes, including transporting Plaintiff and work tools stored at Garcia's residence given that Garcia required a helper to do the job, Plaintiff was the only construction worker employee of Acme at the time, Garcia regularly picked Plaintiff up and transported him to get tools and materials and to the job site, and Plaintiff could not work and get to the job site without Garcia picking him up and driving him.

The evidence supports an inference that Plaintiff was in a sense another essential tool for Garcia to perform the roofing job scheduled that day, and that Garcia as supervisor as part of his job responsibilities was picking up and transporting what was necessary for him to do the roofing job that day when the accident occurred. The fact that Garcia borrowed a car to pick up Plaintiff rather than using his own truck does not change the purpose of Garcia's trip and its role in Garcia's employment for Acme and the specific roofing job that day. If there is sufficient evidence to support that the required vehicle, incidental benefit, or special errand exceptions may apply if they were in Garcia's truck rather than the borrowed vehicle, it is not clear to the Court that the use of the borrowed vehicle (or a rental vehicle) would make the exceptions inapplicable, nor has Acme cited case authority to that effect. At most, the fact that Garcia was driving an alternate vehicle rather than his truck in picking up Plaintiff on the way to getting the tools and then heading to the job site is a fact subject to conflicting reasonable inferences for a trier of fact to consider, specifically, whether Garcia was just doing a favor and picking Plaintiff up that morning, or was just using an alternative vehicle to perform his job functions within the required vehicle, special errand, or incidental benefit exceptions. Conflicting, reasonable inferences from this undisputed fact precludes the Court from granting summary judgment. (Code Civ. Proc. § 437c(c); *Husman, supra*, 12 Cal.App.5th at 1180; *Cohen, supra*,

159 Cal.App.4th at 1497.)

G. Alternative Workers Compensation Exclusivity Rule Theory/Defense

Acme argues that if Plaintiff was acting within the course and scope of his employment when the accident occurred, then his exclusive remedy for his injuries is in workers' compensation insurance. (Lab. Code § 3600 *et seq.*; *Wright v. State of California* (2015) 233 Cal. App. 4th 1218, 1229 [sating, "California's Workers' Compensation Act (Lab. Code, § 3600 *et seq.*) provides an employee's exclusive remedy against his or her employer for injuries arising out of and in the course of employment," but concluding there were factual disputes as to whether the employee in that case was in the course and scope of his employment when he was injured].) Plaintiff offers the additional fact, with a supporting Acme verified response to Request for Admission No. 2, that Acme has admitted Plaintiff was not in the course and scope of his employment when the accident occurred. (PAF 29 and Pl. Exh. 1F.)

Acme in its reply tries to argue that the admission should not be accepted as an admission for various reasons. At a minimum, if the admission does not conclusively foreclose Acme's argument or fully bind Acme to the legal implications of Acme's statement that it "admit[s]" that Plaintiff was "not acting within the course and scope of his employment for Acme" when the accident occurred, the discovery response creates a triable issue on that point, precluding summary judgment for Acme on that ground.

Defendant's Evidentiary Objections to Plaintiff's Opposition Evidence

Defendant objects to two exhibits filed in support of Plaintiff's opposition, specifically Exhibit 1D and 1G, each of which are declared to be true copies of documents produced by Acme identified with a specific series of bates-stamp numbers in the Mastrangelo Declaration. (Mastrangelo Decl. ¶¶ 5, 8.) The Court rules only on evidentiary objections material to the determination of the motion. (Code Civ. Proc. § 437c(q).)

The objection to Exhibit 1D is **overruled**. The Mastrangelo Declaration lays an adequate foundation as to the authenticity of the document (i.e., that they are what they purport to be on their face, see Evid. Code §§ 1400, 1410; *Hooked Media Group v. Apple, Inc.* (2020) 55 Cal.App.5th 323, 337-338, rev. den. by *Hooked Media Group v. Apple Inc.* (Dec. 30, 2020) 2020 Cal. LEXIS 8983.) The EDD form on its face is a document submitted to the EDD by Acme and signed by Acme's president and is relevant and admissible for a nonhearsay purpose as reflecting Acme's characterization of Plaintiff's position (carpenter) which disputes one of Acme's UMFs or even if offered for the truth that Plaintiff was employed as a carpenter, admissible under an exception to the hearsay rule. (Evid. Code § 1220 [admission of party opponent].)